

MANPREET ROMANA



RASEEL GUJRAL AND NAVEEN ANSAL, DELHI, OWN AN INTERIOR DESIGN COMPANY. Both divorced and with children from previous marriages. Met at a party in 1992. Lived together for six years, and got married in 1999. They had another son in 2000.

"Even though marriage is an imperfect institution, we knew we wanted another child and a family."

WORLDVIEW

FRANCE: First to grant legal rights to unwed couples to be entitled to the same rights as married couples.

UK: Four million unwed couples. Rights to cohabiting couples are shelved. There is an absence of rights for women being left with nothing when relationships end.

US: Unmarried adults make up 50.3 per cent of the nation and a survey reveals 40 per cent women have a break-up after 10 years of living in.

NORWAY: Unmarried couples in Norway who live together with children make up the fastest-growing household category.

ITALY: Couples now have health and social welfare benefits. But partners will enjoy inheritance rights only after nine years of living together.

question the roles within, and even relevance of, the age-old institution of marriage, and legal reforms come rushing in to decode newer terms of enchantment. "The law is reacting to as well as reflecting social attitudes and experiences," says political psychologist Ashis Nandy, fellow with the Centre for the Study of Developing Societies, Delhi. "It is also probably unwittingly trying to remain relevant." With a slew of radical legislations, bills, verdicts, proposals and recommendations doing the rounds, live-in relationships are suddenly the flavour of the season.

"Pressure to change the law has been mounting since 2003 when the Justice Malimath Committee recommended that a woman who has been in a live-in relationship for a reasonable time period, should enjoy the legal rights of a wife," says legal expert N.R. Madhava Menon, founder of the National Law School, Bangalore. The Protection of Women from Domestic Violence Act (PVA) extended security against violence to female live-in partners in 2006. In January 2008, the Supreme Court validated long-term live-in relationships as marriages. In June this year, the National Commission for Women sought to broaden the definition of a 'wife' as described in Section 125 of the Criminal Procedure Code (CrPC), which deals with maintenance. Now, the Government of Maharashtra has proposed an amendment to protect the "pecuniary interests" of women living-in "for a reasonably long time".

The boundaries between marriage and cohabitation are being debated intensely across the globe. Live-in couples outnumber the married in the US. Since 1999, unwed

couples have received legal recognition in France. In the UK, where they are four million-strong, wide-ranging reforms are waiting in the wings. In Scandinavian countries, being unmarried is increasingly the norm. In Italy, a law for the first time grants some legal recognition to such couples. In India, however, marriage continues to be the main institution that organises lives. Nearly 99 per cent of women get married, report the National Family Health Surveys III (NFHS).

Never married" women form such an obscure category that the NFHS never bothered to list them (till October 2007). This 1 per cent dares to "live in sin". They are essentially young, urban women, growing up with more flexible lifestyles. For some, marriage does not hold the promise they had hoped for. For others, living together is not an end. Just a fun thing to do. Perhaps a rebellion. "Modern societies face modern challenges," says Nandy. "Women's movement, independent changes in the cultural psychology of sexuality—such as greater acceptance of premarital sex—the massive entry of women into new professions and various economic shifts have led to demands for new kinds of adaptations," he points out. If relationships are becoming more cross-cultural, they are also more contractual now, probably leading to more clear-cut expectations from each other, he holds.

Not surprisingly, Indian laws are hardly ready to address this issue. "If you look at the entire gamut of laws, the personal laws, the secular Special Marriage Act, traditional statutes like CrPC, all the offences against women